

HOUSE OF REPRESENTATIVES

House Bill No. 908

Introduced by Representative Susan A. Yap

EXPLANATORY NOTE

Republic Act 8189 or the Voters Registration Act of 1996 declared that,

“It is the policy of the State to systematize the present method of registration in order to establish a clean, complete, permanent and updated list of voters.”

Our nation is on the crossroads towards a modern elections system. The entire world lauded us for our very first national automated elections which has been generally successful. With the enthusiasm brought about by this achievement, we must move forward to develop a system towards the full automation of election starting from registration, to maintaining an electronic database of registered voters, to the automated recognition of voters in their respective precincts come election.

The COMELEC started using biometrics in the continuing registration of December 2008, after issuing Resolution 8514, in preparation for the 2010 elections. One Data Capturing Machine (DCM) has been deployed in every city or municipal office of election officers. Each registrant has to submit him/herself before the election officer for the capture of his/her photograph, fingerprint, and signature. To strengthen and institutionalize this policy, there is a need to pass this bill.

In addition to the use of biometrics in the registration process, this bill also seeks the use of this technology in the voting process. A system shall be established wherein electronic data generated by biometric registration shall be available to election officers at the precinct level for them to identify the voter (Section 10). This system will eradicate flying or multiple voters since it will detect that an individual has already voted in one and only one precinct.

To implement this project, a single, official, centralized, and interactive computerized national voter registration list or database will be created. Every registrant is assigned a unique key to identify him or her. Also, this list shall be coordinated with other agency databases hence, improving its veracity and usage. This system will cure the perennial problem of multiple registrants.

Our dream of modernized election system is at hand. We only need to improve on where we started and never look back from there.

In view of the foregoing, immediate passage of this bill is earnestly sought.


SUSANA A. YAP

Representative, 2nd District of Tarlac

1 FIFTEENTH CONGRESS)

2 OF THE REPUBLIC OF THE PHILIPPINES)

3 *First Regular Session*)

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6 HOUSE OF REPRESENTATIVES

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8 House Bill No. **908**

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11 Introduced by Representative Susan A. Yap
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14 AN ACT

15 REQUIRING ALL REGISTERED VOTERS WHOSE BIOMETRICS HAVE NOT
16 BEEN CAPTURED TO APPEAR BEFORE THE ELECTION OFFICER OF
17 THEIR PLACE OF REGISTRATION FOR PURPOSES OF HAVING THEIR
18 PHOTOGRAPHS, FINGERPRINTS AND SIGNATURES CAPTURED
19 THROUGH THE METHOD OF BIOMETRICS, FOR PURPOSES OF
20 ENSURING THAT THE AUTOMATED FINGERPRINT IDENTIFICATION
21 SYSTEM (AFIS) CAN BE UTILIZED TO CLEANSE THE RECORDS OF
22 DOUBLE OR MULTIPLE REGISTRANTS

23 Be it enacted by the Senate and the House of Representatives of the Philippines in
24 Congress assembled:

25 SECTION 1. *Declaration of Policy.* - It is the policy of the State to establish a clean,
26 complete, permanent and updated list of voters through the adoption of biometric
27 technology.

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29 SEC. 2. *Definition of Terms.* -As used in this Act:

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31 (a) "Commission" refers to the Commission on Elections (COMELEC).

32 (b) "Biometrics" refers to the quantitative analysis that provides a positive
33 identification of an individual such as voice, fingerprint and/or picture.

34 (c) "Data Capture Machine (DCM)" is the device which captures the picture,
35 fingerprint and signature of a registered voter.

36 (d) "Deactivation" refers to the temporary removal of a registered voter from the
37 Registration Record of Voters for failure to appear before the appropriate Election Officer
38 for validation despite notice.

39 (e) "Double/Multiple registration" is the registration of a voter in more than one (1)
40 city or municipality.

41 (f) "Election Registration Board" refers to the body constituted pursuant to Republic
42 Act No. 8189 (otherwise known as "The Voter's Registration Act of 1996") to act on all
43 applications for registration.

44 (g) "Election Officer" refers to the highest official or authorized representative of
45 the Commission in the city or municipality.

46 (h) "Reactivation" refers to the reinstatement of a registered voter who had been
47 deactivated from the Registration Records of Voters.

48 (i) "Registration Record" refers to the application for registration duly approved by
49 the Election Registration Board.

50 (j) "Validation" is the process of taking the biometrics such as photograph,
51 fingerprint and signature of a registered voter through the use of a DCM.

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53 SEC. 3. *Who Shall Submit for Validation.* - Those registered voters as of October 29,
54 2007 barangay elections and those who thereafter registered and will register under Republic
55 Act No. 8189 (otherwise known as "The Voter's Registration Act of 1996") without
56 biometrics data shall submit for live capture his/her photograph, fingerprint and signature
57 through the use of DCM before the Election Officer of the city/municipality where he/she
58 is a registered voter or intends to register.
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1 SEC. 4. *Who Shall Conduct the Validation.* - The City/Municipal Election Officer,
2 through the use of DCMs, shall conduct the validation process by taking the biometrics of
3 voters.

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5 SEC. 5. *Period for Validation.* - Validation shall be conducted upon the effectivity of
6 this Act, consistent with the Continuing Registration Act.

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8 SEC. 6. *Schedule of Validation Registration.* - The Commission may consider opening its
9 offices nationwide on any given Saturday to accommodate new registrants especially college
10 students who are only free during the weekends.

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12 SEC. 7. *Notice.* - The City/Municipal Election Officer shall serve individual written
13 notices to the voters according to their latest address found in the voter's registration record,
14 notice by publication in five (5) newspapers of general circulation and *two (2)* local papers in
15 every city and province and in some radio broadcast the statement about the need to register
16 the voters.

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18 SEC. 8. *Deactivation.* - Voters who failed to submit for validation on or before the last
19 day of filing of application for registration for purposes of the 2013 national and local
20 elections, despite due notice, shall be deactivated from the registration record of the voters
21 by the Election Registration Board.

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23 SEC. 9. *Reactivation.* - Those deactivated under the preceding section may apply
24 before the Election Registration Board for reactivation with simultaneous validation and the
25 applicant shall, if eligible, be included as a matter of right in the Registration Record of
26 Voters.

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28 SEC. 10. *Use of Biometrics in the Voting Process.* - The Commission shall establish a
29 system wherein the electronic data generated by biometric registration shall be available to
30 Election Officers at the precinct level for them to verify the identity of a voter.

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32 SEC. 11. *Computerized Nationwide Voter Registration List Requirements.* - The
33 Commission shall implement, in a uniform and nondiscriminatory manner, a single, official,
34 centralized, interactive computerized voter registration list defined, maintained and
35 administered by the Commission that contains the name and registration information of
36 every legally registered voter and assigns a unique identifier to each legally registered voter
37 and includes the following:

38 (a) the computerized list shall serve as the single system for storing and managing the
39 official list of registered voters throughout the country;

40 (b) the computerized list contains the name and registration information of every
41 legally registered voter;

42 (c) under the computerized list a unique identifier is assigned to each legally
43 registered voter;

44 (d) the computerized list shall be coordinated with other agency databases;

45 (e) any authorized election official, including any local election official, may obtain
46 immediate electronic access to the information contained in the computerized list; and

47 (f) all voter registration information obtained by any local election official shall be
48 electronically entered into the computerized list on an expedited basis at the time the
49 information is provided to the local official.

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51 SEC. 12. *Voters' List Cleansing.* - Any registered party may file with the Commission
52 the names of the voters which should be excluded, removed or corrected from the
53 computerized nationwide registration lists stating the reasons thereof.

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55 SEC. 13. *Database Security.* - The database generated by biometric registration shall be
56 secured by the Commission and shall not be used, under any circumstance, for any other
57 purpose other than for electoral exercises.

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59 SEC. 14. *Prohibited Acts.* - The following shall be election offenses punishable under
60 Sections 263 and 264 of Batas Pambansa Bilang 881, as amended (otherwise known as the
61 "Omnibus Election Code"):

1 (a) Any person who shall prohibit, impede, obstruct or prevent a registered voter
2 from submitting his/her biometrics for data capture through the use of force, intimidation
3 or monetary consideration;

4 (b) Any public official or person who, under the guise of implementing this Act, shall
5 unjustifiably and without or lacking due process, cause the deactivation or reactivation of any
6 legitimate and bona fide registered voter from the Registration Record of Voters;

7 (c) Any person who attempts to engage in double or multiple registration for the
8 purpose of voting in several precincts; and

9 (d) Any person who attempts to register in a polling place where he/she is not a
10 bonafide and registered resident.

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12 SEC. 15. *Rules and Regulations.* - The Commission shall promulgate the rules and
13 regulations necessary to implement the provisions of this Act.

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15 SEC. 16. *Separability Clause.* - If any part of this Act is held invalid or unconstitutional,
16 the other parts or provisions hereof shall remain valid and effective.

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18 SEC. 17. *Repealing Clause.* -All laws, decrees, executive orders, rules and regulations
19 inconsistent with this Act are hereby repealed or modified accordingly.

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21 SEC. 18. *Effectivity Clause-* This Act shall take effect fifteen (15) days after its
22 publication in at least two (2) newspapers of general circulation.

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24 Approved,
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